Lawyer's Brief for Cyber Dispute Case

Introduction

The present case involves a cyber dispute between the Complainant and the Respondent, wherein the Complainant has been a victim of a phishing scam. This brief outlines the facts of the case, the applicable law, and the relief sought by the Complainant.

Facts of the Case

1. The Complainant was subjected to a phishing scam, whereupon they shared their One-Time Password (OTP) with the scammer.
2. Consequently, an amount of ₹45,000 was deducted from the Complainant's account without their authorization.

Applicable Law

The present case falls under the purview of the bnss_2023, specifically Section 531, which deals with cyber crimes and phishing scams.

Relief Sought

The Complainant seeks the following relief:

1. Refund of the amount of ₹45,000 that was deducted from their account.
2. Compensation for the mental agony and financial loss suffered due to the phishing scam.

Conclusion

In light of the facts and the applicable law, it is clear that the Respondent is liable for the phishing scam and the consequent financial loss suffered by the Complainant. The Complainant is entitled to the refund of the deducted amount and compensation for the phishing scam.

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